

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.

4. S-CV-0050570 CATURAY, ROCHELLE v. MILLER, KURT

Petition for Approval of Minor's Compromise Claim (Alessandra Caturay)

The petition for approval of minor's compromise claim is denied without prejudice. There are several deficiencies with the petition. First, the petition does not allege what injuries claimant Alessandra Caturay suffered. Second, the petition alleges there is no contractual or statutory lien for medical expenses but nonetheless requests that \$1,500 of the settlement proceeds be paid toward medical expenses. Third, the petition does not attach any medical records. Fourth, the petition requests that \$4,500—the entire settlement amount after subtracting medical expenses—be paid to the guardian of the estate but then also requests that \$911 be deposited into an insured account in a financial institution in the state. This creates two distinct issues: one, petitioner requests funds to be allocated greater than the amount recovered and two, the petition does not specify which financial institution the funds are to be placed.

5. S-CV-0051324 AMERICAN EXPRESS NAT'L v. HABIBI, FATEMA

Plaintiff's Motion to Vacate the Conditional Dismissal and for Entry of Judgment Pursuant to Code of Civil Procedure Section 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered by the court on November 2, 2023, is vacated. Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$53,732.26, less credits in the amount of \$38,733.36, plus court costs in the amount of \$475, for a total judgment entered of \$15,473.90.

6. S-CV-0052034 ORTIZ, MICHAEL v. CITY OF LINCOLN

Plaintiff's Motion to Tax Costs Submitted by Jewett Defendants

Plaintiff moves to tax defendants John Jewett and Jessica Jewett's memorandum of costs filed with the court on February 13, 2026, after the court granted defendants' motion for summary judgment.

The court must first determine whether defendants are prevailing parties pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines prevailing party as

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains

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any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1034, subd. (a)(4).)

Here, defendants are the prevailing parties because plaintiff did not recover any relief against defendants. Thus, defendants are entitled to recover their costs. (Code Civ. Proc., § 1034, subd. (b).) Plaintiff seeks to tax the entirety of the costs memorandum.

“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Moreover, “if the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred by the defendant.” (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

Here, the challenged items of filing and motion fees, jury fees, deposition costs, and fees for electronic filing or service are proper charges as each cost is statutorily authorized. (Code Civ. Proc., §§ 1033.5, subds. (a)(1), (3)(A), (14).) Plaintiff therefore bears the burden to show the costs were unreasonable or unnecessary. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) Plaintiff, however, does not meet his burden. Even assuming arguendo plaintiff did meet his burden—which he did not—defendants thereafter meets their burden to show, through the declaration of Robert Sweetin and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, plaintiff’s motion is denied in its entirety.

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Plaintiff's Motion to Tax Costs Submitted by Defendant City of Lincoln

Plaintiff moves to tax defendant City of Lincoln's memorandum of costs filed with the court on March 26, 2026, after the court granted defendant's motion for summary judgment.

The court must first determine whether defendant is a prevailing party pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines prevailing party as

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1034, subd. (a)(4).)

Here, defendant is the prevailing party because plaintiff did not recover any relief against defendant. Thus, defendant is entitled to recover their costs. (Code Civ. Proc., § 1034, subd. (b).) Plaintiff seeks to tax the entirety of the costs memorandum.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Moreover, "if the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred by the defendant." (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

Here, the challenged items of jury fees and deposition costs are proper charges as each cost is statutorily authorized. (Code Civ. Proc., §§ 1033.5, subds. (a)(1), (3)(A), (14).) Plaintiff therefore bears the burden to show the costs were unreasonable or unnecessary. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) Plaintiff, however, does not meet his burden. Even assuming *arguendo* plaintiff did meet his

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burden—which he did not—defendant thereafter meets its burden to show, through the declaration of Joe Little and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, plaintiff’s motion is denied in its entirety.

7. S-CV-0052150 ZOLLER, KATHIE v. DONALD RYAN AND CAROLYN

Defendants’ Motion for Summary Adjudication on the Second Cause of Action for Intentional Infliction of Emotional Distress and on the Claim for Punitive Damages

Appearances of the parties are required at the hearing.

8. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

Plaintiff’s Motion for Leave to Amend Complaint to Allow Claim for Punitive Damages

Plaintiff moves for leave from the court to amend his complaint to include a prayer for punitive damages.

The court notes the motion is procedurally deficient because it does not comply with California Rules of Court, Rule 3.1324, subdivision (a) by identifying what allegations are to be deleted and what allegations are to be added. This is especially problematic here because plaintiff moves to add a prayer for punitive damages yet the proposed second amended complaint is 3 pages longer than the operative first amended complaint. The court nonetheless addresses the merits of plaintiff’s motion.

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)